

|                                                                                                                                                                                                             |                                                                          |                                                                                                                                                                                   |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>JDF 2371</b>                                                                                                                                                                                             | <b>Motion to Seal Conviction Records</b><br>Conduct No Longer Prohibited |                                                                                                                                                                                   |
| <b>A. Court</b><br>Type: (ex: County or District)<br>Colorado County: <input style="width: 150px;" type="text" value="El Paso"/><br>Court Address: <input style="width: 150px; height: 30px;" type="text"/> |                                                                          | <i>This box is for court use only.</i>                                                                                                                                            |
| <b>B. Parties to the Case</b><br>Plaintiff: People of the State of Colorado<br>vs.<br>Defendant: <input style="width: 150px;" type="text" value="Maria-Alejandra O'Shaughnessy-Whitfield"/>                 |                                                                          |                                                                                                                                                                                   |
|                                                                                                                                                                                                             |                                                                          | <b>C. Case Details</b><br>Number: <input style="width: 100px;" type="text" value="2024CR0011882-SUPPLEMENTAL"/><br>Division/Courtroom: <input style="width: 100px;" type="text"/> |

### 1. Background

I submit this motion to seal conviction records under C.R.S. § 24-72-711.

### 2. My Information *(the Defendant)*

Date of Birth:   
 Mailing Address:   
 City, State, & Zip:   
 Phone:   
 Email:

Do you need an interpreter? ☐ No ☐ Yes, in *(language)*

I want to attend court events: ☐ In-person ☐ Virtually *(by phone or web video)*

*To switch your choice:*

Use form *JDF 76 – General Motion*. File at least 48 hours before an event.

### 3. Records to be Sealed

I request that the following conviction records be sealed:

- ☐ District or County Court  
☐ Prosecuting Attorney  
☐ Sheriff's Department

Case Number:

Mailing Address:

- ☐ Colorado Bureau of Investigation ***(Required)***  
 ATTN Identification-Seals, 690 Kipling St., STE 3000, Lakewood, CO 80215

☐ Law Enforcement: (Agency Name) \_\_\_\_\_

Agency Mailing Address: \_\_\_\_\_

Agency Case Number: \_\_\_\_\_

☐ Law Enforcement: (Agency Name) \_\_\_\_\_

Agency Mailing Address: \_\_\_\_\_

Agency Case Number: \_\_\_\_\_

☐ Other: (Name) \_\_\_\_\_

Mailing Address: \_\_\_\_\_

☐ Other: (Name) \_\_\_\_\_

Mailing Address: \_\_\_\_\_

Arrest Number: (from fingerprint card) \_\_\_\_\_

Date of Arrest: \_\_\_\_\_

#### 4. Offense Information

I was convicted of these offenses in this case:

☐ Petty Offense(s) of \_\_\_\_\_

☐ Misdemeanor Offense(s) of \_\_\_\_\_

☐ Felony Offense(s) of \_\_\_\_\_

Date Sentenced: \_\_\_\_\_

Probation/Parole Supervision Termination Date: \_\_\_\_\_

These offenses include: (check all that apply)

##### a) Drug Offenses

Were any of these drug offenses committed before October 1, 2013?

☐ Yes ☐ No

**Note:** The court determines the eligibility of drug offenses (committed before October 1, 2013) by the offense's classification at the time of sealing.

**b) Psilocybin Offenses**

Do the charges involve psilocybin or psilocyn (under the statutes listed below), and is the act no longer unlawful under C.R.S. § 18-18-434?

Statutes: C.R.S. §§ 18-18-403.5, 404, 405, 411, 412.7, 429, and 430.

☐ Yes ☐ No

**5. Eligibility**

This conviction is for an offense that is no longer prohibited by statute.

**6. Criminal Record**

**Note:** A criminal history record is not required.

**7. Certificate of Service**

On *(enter service date)* \_\_\_\_\_

I certify that I sent a copy of this document to the prosecuting attorney by: *(select one)*

- ☐ Colorado Courts E-Filing. *(only available to lawyers)*
- ☐ Regular Mail, addressed to: *(name)* \_\_\_\_\_  
*Full address:* \_\_\_\_\_
- ☐ Other: *(explain)* \_\_\_\_\_

**8. Sign & Date**

Print Your Name:

Signature: \_\_\_\_\_

Date: \_\_\_\_\_

Counsel Signature: *(if any)* \_\_\_\_\_

|                                                                                                                                                                           |                                                                                                                                                                |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>JDF 2374</b>                                                                                                                                                           | <b>Order to Seal Conviction Records</b><br>Conduct No Longer Prohibited                                                                                        |
| <b>A. Court Information</b><br>Type: (ex: County or District)<br>Colorado County: <input type="text" value="El Paso"/><br>Court Address: <input type="text"/>             | <i>This box is for court use only.</i>                                                                                                                         |
| <b>B. Parties to the Case</b><br>Plaintiff: The People of the State of Colorado<br>vs.<br>Defendant: <input type="text" value="Maria-Alejandra O'Shaughnessy-Whitfield"/> |                                                                                                                                                                |
|                                                                                                                                                                           | <b>C. Case Details</b><br>Number: <input type="text" value="2024CR0011882-SUPPLEMENTAL"/><br>Division: <input type="text"/><br>Courtroom: <input type="text"/> |

————— **The Court Completes the Rest of this Form** —————

**1. Background**

The Defendant seeks to seal their conviction records under C.R.S. § 24-72-711, based on the fact that the underlying conduct is no longer prohibited under state law.

**2. Defendant's Information**

- a) Full Name:
- b) Birth Date:
- c) Mailing Address:   
City, State, and Zip Code:

**3. Court Findings**

The Court finds as follows:

☐ **a) Conduct No Longer Unlawful**

The Defendant was convicted of a charge that is no longer unlawful under statute.

☐ **b) Proper Filing and Notice**

The Defendant filed their motion after the date of final disposition or release from supervision, whichever was later. They gave proper notice of their motion to the District Attorney.

☐ **c) Objection Not Filed**

It has been at least forty-two days since the motion was filed, and the District Attorney has not filed an objection.

☐ **d) Other Findings**

**4. Court Orders**

**a) Records Sealed**

Criminal records information relating to and contained in:

1) The above-captioned case; and

2) Law Enforcement Agency: \_\_\_\_\_

Case number: \_\_\_\_\_

Arrest number: \_\_\_\_\_

The Records must be sealed immediately, except for basic identifying information. If an inquiry is made, the Person in Interest and Criminal Justice Agency may reply that no such records exist. This order applies to public and private custodians of the records.

**b) Case Sealed**

The Court directs the Clerk of Court to seal the above-captioned case.

**c) Service**

The Court's clerk shall provide a copy of this Order to the Colorado Bureau of Investigation (CBI) and every records custodian listed in the Petition.

**d) Other Orders**

**So Ordered**

By: \_\_\_\_\_  
☐ Judge    ☐ Magistrate

Dated: \_\_\_\_\_